

AGENTICADVERTISING.ORG, INC.
(a Delaware nonprofit nonstock corporation)

**UNANIMOUS WRITTEN CONSENT IN LIEU OF MEETING OF
BOARD OF DIRECTORS**

_____, 2026

Pursuant to Section 141(f) of the Delaware General Corporation Law and the Bylaws of AgenticAdvertising.Org, Inc., a Delaware nonprofit nonstock corporation (the “**Corporation**”), the undersigned, being all of the directors of the Corporation (the “**Board**”), hereby consent to the adoption of the following resolutions without the necessity of a meeting:

Approval of Proposed Amended Bylaws

WHEREAS: The Corporation was formed as a nonprofit nonstock corporation under the laws of the State of Delaware and is intended to qualify as an organization described in Section 501(c)(6) of the Internal Revenue Code;

WHEREAS: The Board currently in office was primarily appointed by the Incorporator and is serving as the Incorporator-Appointed Board (as defined below);

WHEREAS: The Corporation has not yet admitted Voting Members, and the Board has determined that it is advisable and in the best interests of the Corporation to adopt amended Bylaws to facilitate the Corporation’s launch and initial operations, including governance during an initial Launch Transitional Period (as defined therein);

WHEREAS: The Board has reviewed and considered a proposed form of amended and restated Bylaws attached hereto as Exhibit A (the “**Amended Bylaws**”), which establish governance provisions applicable during the Launch Transitional Period and thereafter in accordance with their terms;

WHEREAS: The Board intends that the Amended Bylaws be adopted by the Board at this time and thereafter submitted to the Voting Members for review, approval, and ratification promptly upon their admission.

NOW, THEREFORE, BE IT:

RESOLVED: That the Board hereby adopts and approves the Amended Bylaws of the Corporation, substantially in the form presented to the Board, and authorizes and directs that the Amended Bylaws be effective immediately upon adoption, subject to review, approval, and ratification by the Voting Members promptly following their admission.

RESOLVED: That the Board hereby acknowledges that the Amended Bylaws include those provisions that are specifically intended to govern the Corporation during the Launch Transitional Period described therein, during which period the Board retains the authority set forth in the Amended Bylaws to operate and govern

the Corporation pending the admission of Voting Members and the election of a member-elected Board.

RESOLVED: That, upon expiration of the Launch Transitional Period, the governance provisions set forth in the Amended Bylaws applicable following such period shall apply in accordance with their terms.

RESOLVED: That the Board agrees that upon admission of Voting Members, the Board will promptly provide the Amended Bylaws to the Voting Members for ratification.

General

RESOLVED: To authorize, empower, and direct the officers of the Corporation, and each of them acting singly (i) to execute, seal, and deliver in the name of and on behalf of the Corporation any and all documents, agreements, and instruments to effectuate any of the foregoing resolutions, all with such changes therein as any of such officers may deem necessary or desirable, and (ii) to take such action (including without limitation the filing of any and all applications and the payment of any and all filing fees and expenses), or to cause the Corporation or any other person to take such action as may in the judgment of the officer so acting be necessary or desirable in connection with, or in furtherance of, any of the foregoing resolutions, and the execution and delivery of any such document, agreement, or instrument or the taking of any such action shall be conclusive evidence of such officer's authority hereunder to so act.

RESOLVED: To ratify, confirm, and approve all actions taken by the officers of the Corporation in connection with any and all of the matters referred to in or contemplated by any of the foregoing resolutions.

RESOLVED: That this consent may be executed in one or more counterparts and by electronic transmission, each of which shall be deemed an original and all of which together shall constitute one and the same instrument, and

RESOLVED: To direct that this consent be filed with the records of meetings of the Directors.

The remainder of this page is intentionally left blank

EXECUTED as of the date first set forth above.

Signed by:

Michael Blum

318D0B9C4580456...

Michael Blum

Signed by:

Brian O'Kelley

85F1E67141AE40F

Brian O'Kelley

Signed by:

Pia Malovrh

E4616343CC194AF...

Pia Malovrh

Exhibit A
“Amended Bylaws”
Bylaws

**BYLAWS
OF
AGENTICADVERTISING.ORG, INC.
(the “Corporation”)**

Article I. Offices

Section 1.01 Location. The principal office of the Corporation shall be located within or without the State of Delaware, at such place as the Corporation’s Board of Directors (the “**Board**”) shall from time to time designate. The Corporation may maintain additional offices at such other places as the Board may designate. The Corporation shall have and maintain within the State of Delaware a registered office at such place as may be designated by the Board.

Article II. Agentic Advertising Defined; Purposes and Limitations

Section 2.01 Corporate Purposes. As provided in the Corporation’s Certificate of Incorporation (the “**Certificate**”), the principal purposes of the Corporation include promoting the common business interests of participants in the agentic advertising industry by developing and advancing open technical standards that enable interoperability of artificial intelligence-driven advertising technologies; fostering collaboration among agentic advertising industry stakeholders; and supporting education and advocacy for the agentic advertising industry (the “**Purposes**”).

Section 2.02 Agentic Advertising Defined. The Corporation defines “**agentic advertising**” as the use of artificial intelligence (“**AI**”) tools and services to improve the effectiveness and the efficiency of marketing beyond what legacy tools allow. The function of agentic advertising crosses industry and sector categories. Its primary stakeholder groups and industry participants include brands, publishers, marketing agencies, and technology developers.

Section 2.03 Mission. The Corporation is an independent nonprofit, tax-exempt membership association dedicated to the development of standards and practices for and knowledge about AI marketing services, products, and tools, with the goal of enhancing the competitiveness, accessibility, utility, safety, security, and profitable growth of all participants in the marketing-media ecosystem, including brands, publishers, agencies, and technology companies (the “**Mission**”).

Section 2.04 Limitations. The Purposes, Mission, and activities of the Corporation shall be subject to the limitations set forth in the Certificate and these Bylaws, and conducted in compliance with Section 501(c)(6) of the Internal Revenue Code (the “**Code**”).

Article III. Members

Section 3.01 Membership. The Corporation shall have one (1) or more members (each, a “**Member**” and collectively, the “**Members**”). Membership in any class shall be available only to individuals or legal entities that: (a) meet the qualifications and requirements specified for the applicable membership class under these Bylaws and any policies adopted by the Board; and (b) support the Purposes and Mission of

the Corporation. A qualified applicant who satisfies these criteria will be admitted as a Member upon submission of a completed application and its acceptance and processing in accordance with the Corporation's policies.

Section 3.02 Member Classes. There shall be three (3) classes of Members: Voting Members, Individual Members, and Associate Members. Voting Members shall be the voting members of the Corporation (the "Voting Members"). No Member may be a Member in more than one (1) membership class.

(a) **Voting Members.** Voting membership is open to legal entities that are primary participants in the agentic advertising industry in any of the four (4) categories described in subsection (i) below and that support the Purposes and Mission of the Corporation. Voting Members shall pay a membership fee as set by the Board from time to time.

(i) **Agentic Advertising Industry Categories.** Each Voting Member shall be classified by the Board, at its sole discretion, into one (1) of the four (4) following agentic advertising industry categories based on its role in the industry: Marketer, Publisher, Marketing Agency, and Technology Provider. Regardless of such categories, all Voting Members constitute one (1) class of membership: Voting Members. Voting Members and their employees may participate in all activities of the Corporation except those activities that are restricted to those in a different membership class.

- 1) Marketer: Producers of goods and services for consumers and/or other business, and as the Board may determine from time to time.
- 2) Publisher: Creators of original content for consumers and/or other businesses whose revenue derives significantly from the sale of marketing or advertising programs to marketers, and as the Board may determine from time to time.
- 3) Marketing Agency: Suppliers of strategic, creative, procurement, and/or data services to marketers, and as the Board may determine from time to time.
- 4) Technology Provider: Developers and suppliers of agentic services for participants in the agentic advertising marketing-media supply chain, and as the Board may determine from time to time.

(ii) **Category Requests and Amendments.** To ensure fair representation, an organization that qualifies for more than one (1) Voting Member category may, at the time of its membership application, request a single category of participation for Board consideration. A Voting Member may request to change its Voting Member category no more often than once every twenty-four (24) months, and any such change requires prior approval by the Board.

(iii) **Affiliated Entities and Voting Members.** To ensure consistency and fair representation, Voting Members shall generally be the parent company in the Voting Member's corporate structure, which entitles all employees of its subsidiaries, affiliates, and business units to

participate in the Corporation's activities, subject to applicable rules and policies of the Corporation. If a parent company elects not to join the Corporation as a Member, one (1) or more of its subsidiaries and/or affiliates may be admitted to membership in a single Voting Member category, in compliance with the membership admission requirements set forth in these Bylaws, (a) only with Membership Committee approval; or (b) during the Launch Transitional Period (as defined herein), without such approval unless the Membership Committee is constituted. In cases where multiple subsidiaries and/or affiliates of the same parent company are admitted as Voting Members, they shall collectively hold only one (1) vote, and they shall jointly designate their one (1) Designated Representative to exercise their vote on any matter requiring a vote, subject to Board review and approval. For purposes of this Section 3.02, the following definitions apply:

- 1) **"Subsidiary"** means, with respect to any person, any other person which such first person, directly or indirectly (a) owns or controls at least fifty percent (50%) of the total voting power, whether by way of contract or otherwise, of shares of capital stock or other equity interests or is entitled (without regard to the occurrence of any contingency) to appoint or to vote in the election of directors, managers, trustees, or other governing body of such person, (b) has the power to generally direct the business and policies of that other person as a general partner, managing member, manager, or in similar capacity, or (c) has a right to a majority of the distributions, dividends, or analogous payments of such person.
 - 2) **"Affiliate"** means, with respect to any specified person, any other person who, directly or indirectly, controls, is controlled by, or is under common control with such person, including, without limitation, any general partner, managing member, officer, director, or trustee of such person.
- (iv) **Designated Representative.** Each Voting Member shall appoint and certify in writing to the President of the Corporation a **"Designated Representative,"** who is fully empowered to represent, vote, and act on behalf of the Voting Member in all matters, proceedings, and activities of the Corporation. All actions taken by the Designated Representative shall constitute the action of the Voting Member.
- (b) **Individual Members.** Individual membership is open to any adult individual person working on or interested in the agentic advertising industry and who supports the Corporation's Purposes and Mission. Such persons may include, without limitation, academics, investment bankers, and management consultants. Individual Members shall have no voting rights in the Corporation and shall have the membership privileges defined by the Board from time to time. Individual Members shall pay a membership fee as set by the Board from time to time.
- (c) **Associate Members.** Associate membership is open to legal entities which are non-primary agentic advertising industry participants, adjacent to the industry, and which support the Corporation's Purposes and Mission. Such legal entities may include, without limitation, other trade or professional associations, venture capital firms, private equity firms, and other agentic advertising

industry-adjacent organizations. Associate Members shall have no voting rights in the Corporation and shall have the membership privileges defined by the Board from time to time. Associate Members shall pay a membership fee as set by the Board from time to time.

Section 3.03 *Membership Rights and Privileges.* The rights of each class of Members are specified in these Bylaws. Membership privileges include the tangible and intangible benefits associated with membership in the Corporation. The Board of Directors shall determine and update the privileges for each membership class from time to time.

- (a) **Voting Members**, through their Designated Representatives, shall be entitled to one (1) vote on all matters submitted to a membership vote, as provided in these Bylaws, the Certificate, or by law. Except as otherwise provided in these Bylaws (including during the Launch Transitional Period) or the Certificate, Voting Members shall have the right to
 - (i) Elect Directors to the Board pursuant to these Bylaws, effective upon and following the expiration of the Launch Transitional Period;
 - (ii) Remove Directors from the Board pursuant to these Bylaws, effective upon admission of Voting Members;
 - (iii) Amend the Certificate;
 - (iv) Fill a Director vacancy on the Board arising prior to the expiration of a Director's term subject to these Bylaws, effective upon and following the expiration of the Launch Transitional Period;
 - (v) Vote on all matters properly submitted to the Voting Members (e.g., approval of standards or protocols, etc.);
 - (vi) Amend these Bylaws, subject to these Bylaws; provided that, during the Launch Transitional Period, the Board may review, propose, and recommend amendments to these Bylaws as initially adopted by the Incorporator, and any such amendments shall be subject to approval by the Voting Members following their admission in accordance with these Bylaws;
 - (vii) Approve any agreement of merger or consolidation;
 - (viii) Authorize dissolution of the Corporation;
 - (ix) Approve the sale, lease, exchange, or other disposition of all or substantially all of the Corporation's assets;
 - (x) Hold elected or appointed office, as provided in these Bylaws;
 - (xi) Annually approve the membership dues structure; and
 - (xii) Exercise all rights conferred on Associate Members.

For the avoidance of doubt, notwithstanding the category-based voting mechanics applicable under these Bylaws to the election, removal, and filling of vacancies for category-designated Directors, the matters described in Sections 3.03(a)(vii), (viii), and (ix) shall be submitted to all Voting Members for plenary vote, with all Voting Members voting together as a single class.

(b) Individual Members shall have the right to:

- (i)** Participate in Corporation activities that are open to Individual Members;
- (ii)** Take part in education, training, and other development programs offered by the Corporation that are open to Individual Members;
- (iii)** Seek professional certification from the Corporation; and
- (iv)** Participate in working groups or other convenings that are open to Individual Members.

(c) Associate Members shall have the right to:

- (i)** Participate in Corporation activities open to Associate Members, subject to any participant limits set by the Corporation from time to time;
- (ii)** Take part in education, training, and other development programs offered by the Corporation that are open to Associate Members, subject to any participant limits set by the Corporation from time to time; and
- (iii)** Participate in working groups or other convenings, subject to any participant limits set by the Corporation from time to time.

Section 3.04 *Membership Dues, Fees, and Assessments.* The Board shall establish, and may modify from time to time, the membership dues, fees, and assessments applicable to Voting Members, Individual Members, and Associate Members; provided that, in proposing such dues, fees, and assessments, the Board shall take into account the Corporation's Purposes and Mission, and the objective of promoting broad and non-exclusionary participation by eligible agentic advertising industry participants. Such dues, fees, and assessments shall be subject to approval by the Voting Members on at least an annual basis. In considering whether to approve such dues, fees, and assessments, the Voting Members will consider the Corporation's Purposes and Mission.

Section 3.05 *Membership Obligations.* Members are required to abide by these Bylaws and any other rules, regulations, and policies established by the Board from time to time.

Section 3.06 *Member Resignation.* Any Member may resign by delivering such Member's written resignation to the Corporation at its principal office or to the President or Secretary. Such resignation shall be effective upon receipt unless it is specified to be effective at some other time or upon the happening of some other event.

Section 3.07 *Member Term; Transfer.* The term of membership for Members shall be one (1) year and will renew for the subsequent year upon payment of applicable membership dues. Membership in the Corporation is not transferable to any other person, whether individual or entity, regardless of membership class or category.

Section 3.08 *Member Termination, Suspension, and Removal.* Following notice by invoice, and consistent with these Bylaws, the Corporation may terminate the membership of any Member who has not

satisfied membership requirements related to the payment of all applicable dues, fees, and assessments. Pursuant to a fair process and under procedures duly adopted by the Board, a Member may be suspended or expelled from membership by a two-thirds (2/3) vote of the Board.

Section 3.09 *Member Meetings.*

- (a) **Annual Meeting.** Following the admission of Voting Members, the annual meeting of the Members shall be held each year; provided that the first annual meeting of the Members at which Voting Members shall elect Directors, shall be held on or before the expiration of the Launch Transitional Period. The annual meeting of the Members shall be held at the place, date, and time determined by the Board. The purposes for which the annual meeting of Members is to be held, in addition to those prescribed by law, by the Certificate or by these Bylaws, may be specified by the Board or the President.
- (b) **Special Meetings.** Special meetings of the Members may be called by the President or by the Board. Special meetings shall be called by the Secretary, or in case of the death, absence, incapacity, or refusal of the Secretary, by any other Officer, upon written application of Voting Members representing at least ten (10) percent of the Voting Members then entitled to vote.
- (c) **Place of Meetings.** All meetings of the Members shall be held at such place, if any, either within or without the State of Delaware, or by means of remote communication, as shall be designated from time to time by the Board.
- (d) **Remote Participation.** Any Member may participate in a Member meeting by means of remote communication and such Member is deemed to have been present in person and may vote at the meeting, whether such meeting is to be held at a designated place or solely by means of remote communication, provided that: (i) the Corporation shall implement reasonable measures to verify that each person deemed present and permitted to vote at the meeting by means of remote communication is a Member or proxyholder; (ii) the Corporation shall implement reasonable measures to provide such Members and proxyholders a reasonable opportunity to participate in the meeting and to vote on matters submitted to the Voting Members, including an opportunity to read or hear the proceedings of the meeting substantially concurrently with such proceedings; and (iii) if any Voting Member or proxyholder votes or takes other action at the meeting by means of remote communication, a record of such vote or other action shall be maintained by the Corporation.

Section 3.10 *Notice of Meetings; Waiver.* A written notice of the place, date, and time of each annual or special meeting of the Members stating the purposes of the meeting shall be given by the Secretary (or other person authorized by these Bylaws or by law) not less than ten (10) days nor more than sixty (60) days before the meeting to each Member by delivering such notice to the Member, or by electronic transmission, by faxing it or by mailing it, postage prepaid, to such Member at such Member's address as it appears in the records of the Corporation. Notwithstanding the foregoing, notice of any meeting at which the Voting Members will be asked to consider the matters described in Sections 3.03(a)(vii), (viii), and (ix) shall be given not less than twenty (20) days before the meeting, and such notice shall state that such matter

will be considered at the meeting. A written waiver of notice, executed before or after a meeting by a Member or such Member's attorney thereunto authorized and filed with the records of the meeting shall be deemed equivalent to notice of the meeting.

Section 3.11 *Quorum.* Members representing at least one-third (1/3) of the Voting Members then entitled to vote shall constitute a quorum; provided, however, that, for each Voting Member category with one or more Voting Members then entitled to vote, at least ten (10) percent of the Voting Members in such category, rounded up to the next whole Voting Member, are present in person or by proxy. For purposes of any matter submitted solely to a particular Voting Member category, including the election of category-designated Directors, the presence in person or by proxy of at least ten (10) percent of the Voting Members in such category then entitled to vote thereon, rounded up to the next whole Voting Member, shall constitute a quorum of such category for that matter. If a quorum is not present, the Members present may adjourn the meeting to a later date without further notice, provided that no business other than adjournment is conducted.

Section 3.12 *Proxies and Voting.* At all meetings of the Members, each Voting Member shall be entitled to one (1) vote either in person or by proxy. Proxies shall be in writing and shall be filed with the Secretary of the meeting, or of any adjournment thereof, before being voted. Except as otherwise limited therein, proxies shall entitle the persons authorized thereby to vote at the meeting named therein and any adjournment thereof but shall not be valid after final adjournment of such meeting. No proxy dated more than three (3) years before the meeting named therein shall be valid, unless the proxy is coupled with an interest and provides otherwise. A proxy purporting to be executed by or on behalf of a Member shall be deemed valid unless challenged at or prior to its exercise and the burden of proving invalidity shall rest on the challenger.

Section 3.13 *Action at Member Meeting.* When a quorum is present at any meeting, a majority of the Voting Members present in person or by proxy and entitled to vote on a matter shall decide any matter to be voted on by the Voting Members, except where a larger vote is required by law, by the Certificate, or by these Bylaws. Election of a category-designated Director shall be determined by a plurality of the votes cast by the Voting Members in the applicable Voting Member category entitled to vote in such election, except where a larger vote is required by law, the Certificate, or these Bylaws. Removal of Directors and the filling of Director vacancies shall be effected in accordance with Article IV. Notwithstanding the foregoing, approval of matters described in Sections 3.03(a)(vii), (viii), and (ix) shall be made by a plenary vote of all Voting Members voting together as a single class and shall require the affirmative vote of a majority of the Voting Members entitled to vote thereon, unless a greater vote is required by law, the Certificate, or these Bylaws. No ballot shall be required for any election unless requested by a Voting Member present in person or by proxy and entitled to vote in the election.

Section 3.14 *Action by Voting Member Consent.* Any action to be taken at any annual or special meeting of the Members may be taken without a meeting, without prior notice and without a vote, if a consent or consents in writing or by electronic transmission, setting forth the action so taken, shall be signed by the Voting Members having not less than the minimum number of votes that would be necessary to authorize or take such action at a meeting at which all Voting Members having a right to vote thereon were

present and voted, and the written consents are filed with the records of the meetings of the Members. Such consents shall be treated for all purposes as a vote at a meeting of the Members.

Section 3.15 *Standing Voting Member Committees.*

- (a) Except during the Launch Transitional Period, the Corporation shall maintain up to four (4) standing Voting Member Committees, each corresponding to one (1) of the four (4) Voting Member categories: Marketer Committee, Publisher Committee, Agency Committee, and Technology Committee (each a “**Member Committee**” and collectively, the “**Member Committees**”). Each Member Committee shall serve as a forum for discussion, debate, learning, and collaborative work relevant to its respective Voting Member category. The Member Committees are intended to foster open and candid dialogue among Voting Members within the same category. During the Launch Transitional Period, the Initial Board may establish, suspend, or dissolve any Member Committee from time to time based on the Corporation’s stage of development and the composition of its Voting Members.
- (b) Membership in each Member Committee is limited to employees of Voting Member organizations within that specific category. For example, only employees of Voting Members categorized as Publisher may participate in the Publisher Committee.
- (c) The Member Committees shall only have the authority to make recommendations to the Voting Members and the Board. The Member Committees shall not have authority to make binding decisions on behalf of the Voting Members, the Board, or the Corporation.

Article IV. Board of Directors

Section 4.01 *Power of Board.* The business and affairs of the Corporation shall be managed by or under the direction of its Board, which may exercise all the powers of the Corporation except as otherwise provided by law, by the Certificate, or by these Bylaws. The Board may exercise its powers and act on any matter notwithstanding the existence of one (1) or more vacancies in the Board.

Section 4.02 *Number and Election.*

- (a) **Incorporator-Appointed Board and Initial Board.** The Board appointed following the formation of the Corporation shall be known as the “**Incorporator-Appointed Board**” and shall be composed of individuals appointed by the Incorporator (each, a “**Director**,” and collectively, the “**Directors**”). As of the date of adoption of these Bylaws, the “**Initial Board**” shall mean the Board currently in office, as appointed by the Incorporator-Appointed Board. Following the date of adoption of these Bylaws and until the expiration of the Launch Transitional Period, the Initial Board may appoint successor or additional members of the Initial Board, which shall be composed of not fewer than three (3) nor more than forty-one (41) Directors.
- (b) **Voting Member-Constituted Board.** Following the expiration of the Launch Transitional Period, the Directors shall be elected by the Voting Members and shall, together with the Chief Executive

Officer of the Corporation, if any, constitute the Board; provided that Directors designated for a particular Voting Member category shall be elected solely by the Voting Members in such category. The Board shall consist of not fewer than five (5) nor more than forty-one (41) Directors, with the number of Directors fixed by the Board from time to time, subject to this Section 4.02(b). Following the expiration of the Launch Transitional Period, in addition to the Chief Executive Officer of the Corporation, if any, the Board shall be composed of Directors representing each of the four (4) Voting Member categories described in these Bylaws (Marketer, Publisher, Marketing Agency, and Technology Provider), with the number of Directors from each category equal, or as nearly equal as practicable; provided that the total number of Directors shall be fixed in a manner consistent with such requirement. Director seats shall be allocated among the four (4) Voting Member categories in accordance with the foregoing parity requirement, and candidates for each category-designated seat shall be nominated from within (as described in the following sentence), and elected by, such Voting Member category. Each Director must be either: (a) a current employee of a duly qualified Voting Member in the appropriate category; or (b) an Officer of the Corporation. The Board may invite to Board meetings non-voting and/or ex officio individuals and/or Board observers as determined in the Board's discretion from time to time. For the avoidance of doubt, Voting Members constitute a single class of Members for all purposes under these Bylaws and applicable Delaware law, and the foregoing category designations are solely for purposes of Director elections, Director removals, and the filling of vacancies in category-designated Director seats, and do not create separate classes or series of Members or separate voting groups for the matters described in Sections 3.03(a)(vii), (viii), and (ix).

Section 4.03 *Director Tenure.* Except as otherwise provided by law, by the Certificate, or by these Bylaws, each Director shall serve for a term of three (3) years, and such terms shall be staggered so that approximately one-third (1/3) of the number of Directors shall be elected at each annual Members meeting, excluding Directors serving on the Incorporator-Appointed Board and the Initial Board during the Launch Transitional Period, whose terms shall be limited to service during the Launch Transitional Period, unless earlier terminated, resigned, removed, or replaced by the Initial Board. At the first meeting of the Members after the election of Directors after the Launch Transitional Period, the terms of the Directors then in office shall be designated so that approximately one-third (1/3) of the number of Directors shall be elected at each subsequent annual Members meeting. Directors shall hold office, except as otherwise hereinafter provided, until the third annual meeting following their election and until their successors are elected and qualified or until their earlier resignation or removal. A Director may serve no more than two (2) consecutive terms, excluding any service on the Incorporator-Appointed Board or the Initial Board. For the avoidance of doubt, only terms of service as a Director served after election by the Voting Members shall be counted for purposes of this limitation. After serving two (2) consecutive terms, a Director may be re-elected after a minimum one (1) year break in service as a Director.

Section 4.04 *Director Resignation.* Any Director may resign by delivering such Director's written resignation, including by electronic transmission, to the Board or to the Corporation at its principal office or by electronic mail. Such resignation shall be effective upon receipt unless it is specified to be effective at some later time.

Section 4.05 *Director Removal.* Following the expiration of the Launch Transitional Period, a Director may be removed from office with or without cause by vote of a majority of Voting Members entitled to vote in the election of such Director pursuant to Section 4.02(b), provided that written notice of such removal shall be given to any Director so removed. Prior to the admission of Voting Members during the Launch Transitional Period, a Director may be removed from office with or without cause by a vote of a majority of the Directors then in office, provided that written notice of such removal shall be given to any Director so removed.

Section 4.06 *Director Vacancies.* Any vacancy in the Board, however occurring, may be filled: (a) during the Launch Transitional Period, by the vote of a majority of the Directors then in office; and (b) following the expiration of the Launch Transitional Period, by the vote of a majority of the Voting Members entitled to vote for such Director pursuant to Section 4.02(b), at an annual meeting or at a special meeting called for such purpose, in each case at which a quorum is present and in accordance with applicable provisions of these Bylaws governing Member meetings. Vacancies resulting from the resignation or removal of a Director shall be filled for the balance of such Director's term.

Section 4.07 *Board Meetings.* An annual meeting of the Board shall be held at the time and place as shall be fixed by the Board for the election of applicable Officers and for the transaction of such other business as may properly come before the meeting. Regular meetings of the Board may be held at such time and place as may be fixed by the Board. Special meetings of the Board may be held at any time whenever called by the President, Treasurer, or two (2) or more Directors.

Section 4.08 *Notice of Board Meetings.* No notice need be given of regular meetings of the Board for which the time and place have been fixed. Notice of the time, date, and place shall be given for all special meetings of the Board by the President or Secretary, or in case of the death, absence, incapacity, or refusal of both of such persons, by the Officer or one (1) of the Directors calling the meeting. Notice shall be given to each Director in person, by telephone, by facsimile, electronic mail, or other form of electronic communication, sent to such Director's business or home address at least twenty-four (24) hours in advance of the meeting, or by written notice mailed to such Director's business or home address or email address of record at least forty-eight (48) hours in advance of the meeting. Notice need not be given to any Director if a written waiver of notice, executed by such Director before or after the meeting, is filed with the records of the meeting, or to any Director who attends the meeting without protesting prior thereto or at its commencement the lack of notice. A notice or waiver of notice of a special meeting of the Board need not specify the purposes of the meeting.

Section 4.09 *Board Quorum.* Except during the Launch Transitional Period, unless a greater proportion is required by law or by the Certificate, at any meeting of the Board, forty percent (40%) of the Directors then in office shall constitute a quorum. During the Launch Transitional Period, unless a greater proportion is required by law or by the Certificate, at any meeting of the Board, one-third (1/3) of the Directors then in office shall constitute a quorum. Less than a quorum may adjourn any meeting from time to time and the meeting may be held as adjourned without further notice.

Section 4.10 *Action at Board Meeting.* Except as otherwise required by the Certificate or by these Bylaws, at any meeting of the Board at which a quorum is present, a majority of the Directors present may take any action on behalf of the Board.

Section 4.11 *Action by Board Consent.* Any action required or permitted to be taken at any meeting of the Board may be taken without a meeting if all the Directors consent thereto in writing, including by electronic transmission, and the writing or writings are filed with the records of the meetings of the Board. If consent is electronic, such consent will be valid if it can be reasonably determined that the transmission was authorized by the Director. Such consents shall be treated for all purposes as a vote at a meeting of the Board.

Section 4.12 *Director Participation by Remote Communication.* Members of the Board or any committee may participate in a meeting of the Board or of a Board Committee by means of a conference telephone or similar communications equipment which permits all persons participating in the meeting to hear each other at the same time, and participation by such means shall constitute presence in person at a meeting.

Section 4.13 *Board Committees.*

- (a) The Board may create one (1) or more committees and may appoint one (1) or more Directors then in office thereto, in addition to the following standing committees: Executive Committee, Membership Committee, Nominating Committee, and Finance Committee (each a “**Board Committee**”). All members of such Board Committees shall hold such offices at the pleasure of the Board.
- (b) Except as the Board may otherwise determine, any Board Committee may make rules for the conduct of its business, but unless otherwise provided by the Board or in such rules, its business shall be conducted so far as possible in the same manner as is provided by these Bylaws for the Board.
- (c) The Board may delegate to a Board Committee some or all of its powers except those which by law, by a policy of the Corporation, or by Section 4.13(d) of these Bylaws, may not be delegated. Board Committees, to the extent provided for by the Board and not restricted by law, by the Certificate, or Section 4.13(d) of these Bylaws, have and may exercise the authority and act on behalf of the Board in the management of the Corporation, including but not limited to actions specified in these Bylaws as requiring the approval of the Board. Any Board Committee to which the Board delegates any of its powers or duties shall keep records of its meetings and shall report its action to the Board.
- (d) **Limitations on Board Committee Powers.** No Board Committee may:
 - (i) amend the Corporation’s Certificate;

- (ii) amend the Bylaws of the Corporation;
- (iii) adopt an agreement of merger or consolidation;
- (iv) approve the dissolution of the Corporation;
- (v) approve the sale, lease, exchange, or other disposition of all or substantially all of the assets of the Corporation; or
- (vi) elect, appoint, or remove any Director, any member of a Board Committee, or any Officer of the Corporation.

Section 4.14 *Executive Committee.*

- (a) **Powers and Authority.** The Executive Committee may exercise such powers and authority of the Board as are permitted to be delegated under applicable law and these Bylaws in the ongoing management of the business and affairs of the Corporation, except those reserved by law, the Certificate, or these Bylaws for the Board or the Voting Members. The Executive Committee may, to the extent permitted by law, supersede decisions of any other Board Committee. On behalf of the Board, the Executive Committee shall have the authority to hire and remove the Chief Executive Officer. The Executive Committee shall report its actions to the Board at each regular meeting of the Board.
- (b) **Composition and Election.** Following the expiration of the Launch Transitional Period, the Executive Committee shall consist of not fewer than four (4) and not more than thirteen (13) Directors, as determined by the Board from time to time, which may include the President, Vice President (if any), Secretary, Treasurer, and the CEO (if any), in each case only if such individual is also a Director. Excluding Directors serving by virtue of their Officer positions, members of the Executive Committee shall be nominated by the President and elected by the Board. Following the expiration of the Launch Transitional Period, those Directors serving on the Executive Committee shall include those Directors representing each of the four (4) Voting Member categories described in these Bylaws (Marketer, Publisher, Marketing Agency, and Technology Provider), with the number of Directors from each such category equal, or as nearly equal as practicable, consistent with the Board composition requirements set forth in Section 4.02(b). The Board may invite other Officers or individuals to attend Executive Committee meetings in a non-voting, observational capacity. During the Launch Transitional Period, the Executive Committee shall consist of not fewer than three (3) and not more than four (4) Directors appointed by the Board from time to time.
- (c) **Quorum.** One-third (1/3) of the Executive Committee members then serving shall constitute a quorum for the transaction of business at any Executive Committee meeting, and the vote of a majority of Executive Committee members present at a meeting at which a quorum is present shall be the act of the Executive Committee (unless a greater vote is required by law, the Certificate, or these Bylaws).
- (d) **Tenure.** Excluding Officers, Executive Committee members shall serve three (3) years and may serve no more than two (2) consecutive terms on the Executive Committee. Directors may be re-

elected to the Executive Committee following a one (1) year gap in service on the Executive Committee.

Section 4.15 *Non-Voting Sponsors, Benefactors, Friends, etc.* The Board may designate persons or groups of persons as sponsors, benefactors, contributors, advisors, or friends of the Corporation, or such other title as the Board may determine. Unless the Board otherwise determines, such persons shall serve in an honorary capacity and shall have no rights and responsibilities with respect to the Corporation, including without limitation any right to notice of, or to vote at, any meeting of the Board.

Article V. Officers

Section 5.01 *Officers.* The officers of the Corporation shall consist of: a) a President, a Treasurer, and a Secretary (each required); b) a Chief Executive Officer, if appointed (“CEO”); and c) such other officers as the Board may determine in its discretion from time to time (each an “Officer” and collectively, the “Officers”). The Corporation may also have, at the discretion of the Board, one (1) or more Vice Presidents, one (1) or more Assistant Secretaries, one (1) or more Assistant Treasurers, and such other officers as may be elected in accordance with this Article V.

Section 5.02 *Officer Election.* The President, Treasurer, and Secretary shall be elected annually by the Board at the annual meeting of the Corporation. Except the CEO, other Officers may be chosen by the Board at such meeting or at any other meeting.

Section 5.03 *Officer Qualification.* Any two (2) or more offices may be held by any person. Any Officer may be required by the Board to give bond for the faithful performance of such Officer’s duties in such amount and with such sureties as the Board may determine.

Section 5.04 *Officer Tenure.* Except as otherwise provided by law, by the Certificate, or by these Bylaws, and excluding the CEO, each Officer shall hold office until the next annual meeting of the Corporation, and until such Officer’s successor is elected and qualified or until such Officer’s earlier resignation or removal.

Section 5.05 *Officer Resignation.* Any Officer may resign by delivering a written resignation to the Corporation, and such resignation shall be effective upon receipt unless it is specified to be effective at some other time or upon the happening of some other event.

Section 5.06 *Officer Removal.* Excluding the CEO, the Board may remove any Officer with or without cause by a vote of a majority of the Directors then in office.

Section 5.07 *Officer Vacancies.* Excluding the CEO, any vacancy in any office may be filled for the unexpired portion of the term by the Board.

Section 5.08 *President.* The President shall serve as the chief executive Board officer of the Corporation and shall, subject to the direction of the Board, have general supervision and control of its affairs. Unless otherwise provided by the Board, the President shall preside at all meetings of the Board as the chair and if

concurrently a Director, shall be an *ex officio* voting member of all Board Committees. The President shall have such other powers and perform such other duties as the Board may from time to time designate.

Section 5.09 Treasurer. The Treasurer shall be the chief financial Board officer of the Corporation and, subject to the directions of the Board, shall have general charge of the financial affairs of the Corporation and shall cause it to keep accurate books of account. The Treasurer shall be responsible for custody of the funds, securities, and valuable documents of the Corporation, shall cause the preparation of an annual budget for presentation to the Board and such interim budgets as are needed, and shall have such other powers and perform such other duties as the Board may from time to time designate.

Section 5.10 Secretary. The Secretary shall keep a record of the meetings of the Board. In the absence of the Secretary from any such meeting, a temporary Secretary designated by the person presiding at the meeting shall perform the duties of the Secretary. The Secretary shall have such other powers and perform such other duties as the Board may from time to time designate.

Section 5.11 Chief Executive Officer. The Board or the Executive Committee may employ, evaluate, set the compensation for, and/or remove the CEO by resolution adopted by a two-thirds (2/3) vote of the Directors or the Executive Committee members present at a meeting where a quorum is established. The CEO shall be responsible for the administrative and executive management of the affairs of the Corporation and shall serve at the pleasure of the Board. The CEO will serve as an *ex officio* voting member of the Board and as an *ex officio* voting member of the Executive Committee. The Board may delegate to the CEO any such powers and duties which are delegable as a matter of law, subject, in each case, to review by the Board.

Section 5.12 Additional Officers. In addition to the Officers required by these Bylaws, the Board may appoint from time to time one (1) or more additional Officers and agents of the Corporation, who need not be Directors, and who shall have such titles, powers, and duties as shall be prescribed by the Board. If a Vice President is appointed, unless the Board otherwise determines, the Vice President shall have the powers and responsibilities of the President in the absence or incapacity of the latter.

Article VI. Indemnification

Section 6.01 Right to Indemnification. Except as otherwise provided herein, the Corporation may, to the extent legally permissible and only to the extent that the status of the Corporation as an organization exempt under Section 501(c)(6) of the Code is not adversely affected thereby, indemnify any Director, Officer, employee, or agent, any former Director, Officer, employee, or agent, any person who may have served at its request as a director, officer, employee, or agent of another corporation, partnership, joint venture, trust or other enterprise, whether for profit or not for profit, against expenses (including attorneys' fees), judgments, fines and amounts paid in settlement, actually and reasonably incurred by such person in connection with any threatened, pending or completed action, suit or proceeding whether civil, criminal, administrative, or investigative (other than an action by or in the right of the Corporation), to which such person may be or is made a party by reason of being or having been such Director, Officer, employee, or agent if such person acted in good faith and in a manner such person reasonably believed to be in or not

opposed to the best interest of the Corporation and, with respect to any criminal action or proceeding, had no reasonable cause to believe such person's conduct was unlawful. However, there shall be no indemnification in respect of any claim, issue or matter as to which such person shall have been adjudged to be liable to the Corporation unless and only to the extent that the Court of Chancery or the court in which such action or suit was brought shall determine upon application that, despite the adjudication of liability but in view of all the circumstances of the case, such person is fairly and reasonably entitled to indemnity for such expenses which the Court of Chancery or such other court shall deem proper.

Section 6.02 *Payments.* The Corporation may pay expenses (including attorneys' fees) incurred by an Officer or Director in defending any civil, criminal, administrative or investigative action, suit or proceeding in advance of the final disposition of such action, suit or proceeding upon receipt of an undertaking by or on behalf of such Officer or Director to repay such amount if it shall ultimately be determined that such person is not entitled to be indemnified by the Corporation under this Article VI. Such expenses (including attorneys' fees) incurred by other employees and agents may be paid upon such terms and conditions, if any, as the Board deems appropriate.

Section 6.03 *Determination.* Any indemnification (unless ordered by a court) shall be made by the Corporation only as authorized in the specific case upon a determination that indemnification of the Director, Officer, employee, or agent is proper in the circumstances because such person has met the applicable standard of conduct set forth in title 8, sections 145 (a) and (b) of the Delaware General Corporation Law. Such determination shall be made (1) by a majority vote of the Directors who are not parties to such action, suit or proceeding, even though less than a quorum, or (2) if there are no such Directors, or if such Directors so direct, by independent legal counsel in a written opinion.

Section 6.04 *Former Directors and Officers; Heirs, Executors and Administrators.* The indemnification and advancement of expenses provided by this Article VI shall, unless otherwise provided when authorized or ratified, continue as to a person who has ceased to be a Director, Officer, employee, or agent and shall inure to the benefits of the heirs, executors and administrators of such a person.

Section 6.05 *Responsibility With Respect to Employee Benefit Plan.* If the Corporation or any of its Directors or Officers sponsors or undertakes any responsibility as a fiduciary with respect to an employee benefit plan, then for purposes of indemnification of such persons under this Article VI, (i) a Director, or Officer shall be deemed to include any Director or Officer of the Corporation who serves at its request in any capacity with respect to said plan; (ii) such Director or Officer shall not be deemed to have failed to act in good faith in the reasonable belief that such action was in the best interests of the Corporation if such person acted in good faith in the reasonable belief that such action was in the best interests of the participants or beneficiaries of said plan; and (iii) expenses shall be deemed to include any taxes or penalties imposed on such Director or Officer with respect to said plan under applicable law.

Section 6.06 *Insurance.* The Board may authorize the purchase of insurance on behalf of any person who is or was a Director, Officer, employee, or agent of the Corporation, or who is or was serving at the request of the Corporation as a director, officer, employee, or agent of another corporation, partnership, joint venture, trust, or other enterprise against any liability asserted against or incurred by such person in

any such capacity, or which arises out of such person's status as a Director, Officer, employee, or agent whether or not the Corporation would have the power to indemnify such person against that liability under law.

Section 6.07 *Non-Exclusivity*. The provisions of this Article VI shall not be construed to limit the power of the Corporation to indemnify its Directors, Officers, employees, or agents to the full extent permitted by law or to enter into specific agreements, commitments or arrangements for indemnification permitted by law. The absence of any express provision for indemnification herein shall not limit any right of indemnification existing independently of this Article VI.

Section 6.08 *Tax Provisions*. In no case, however, shall the Corporation indemnify, reimburse, or insure any person for any taxes imposed on such individual under the Code. Moreover, the Corporation shall not indemnify, reimburse, or insure any person in any instance where such indemnification, reimbursement, or insurance is inconsistent with any provision of the Code applicable to corporations described in Code section 501(c)(6).

Section 6.09 *Amendment*. The provisions of this Article VI may be amended or repealed by the Voting Members only; however, no amendment or repeal of such provisions which adversely affects the rights of a Director or Officer under this Article VI with respect to such acts or omissions at any time prior to such amendment or repeal, shall apply to such person without such person's consent. If any part of this Article VI shall be found in any action, suit or proceeding to be invalid or ineffective, the validity and the effectiveness of the remaining parts shall not be affected.

Article VII. Miscellaneous Provisions

Section 7.01 *Fiscal Year*. Except as otherwise determined by the Board, the fiscal year of the Corporation shall be the calendar year.

Section 7.02 *Execution of Instruments*. All checks, drafts, acceptances, bills of exchange, deeds, leases, transfers, contracts, bonds, notes, and other obligations, or other instruments for the payment of money (the "**Instruments**") to be entered into by the Corporation in the ordinary course of its business without Board action may be executed on behalf of the Corporation by the President or the Treasurer. When not in the ordinary course of business, the Board may authorize any Officer or agent in writing to enter into any Instrument in the name of the Corporation with such authorization confined to specific instances.

Section 7.03 *Voting of Securities*. Unless otherwise provided by the Board, the President or Treasurer may waive notice of and act on behalf of this Corporation, or appoint another person or persons to act as proxy or attorney in fact for this Corporation with or without discretionary power and/or power of substitution, at any meeting of shareholders of any other corporation or organization whose securities are held by this Corporation.

Section 7.04 *Registered Agent*. The Board shall appoint a registered agent upon whom legal process may be served in any action or proceeding against the Corporation.

Section 7.05 *Books and Records.* The Corporation shall keep at its office or at any other designated office correct and complete books and records of accounts, minutes of the proceedings of its Board, and a current list or record containing the names and addresses of all Members, Directors, and Officers of the Corporation. Any of the books, minutes, and records of the Corporation may be in written form or in any form capable of being converted into written form within a reasonable time.

Section 7.06 *Certificate of Incorporation.* All references in these Bylaws to the Certificate shall be deemed to refer to the Certificate of Incorporation of the Corporation, as amended and in effect from time to time.

Section 7.07 *Incapacity.* For all purposes of these Bylaws, any individual serving as a Member (or a Voting Member's Designated Representative), Director, or Officer of the Corporation shall be deemed to be incapable of conducting business affairs if a physician attending that individual signs a certificate so stating. An individual serving as a Member (or a Voting Member's Designated Representative), Director, or Officer of the Corporation shall cease to serve in said position upon receipt of such certificate by the Board.

Section 7.08 *Launch Transitional Period.* These Bylaws are intended to allow the Corporation to operate during the Launch Transitional Period, an initial, time-limited period beginning on the date these Bylaws are adopted and ending on the earlier of: (a) twelve (12) months following such adoption; or (b) the date of the first annual meeting of Members at which Voting Members elect Directors pursuant to these Bylaws (the "**Launch Transitional Period**"). During the Launch Transitional Period, the Corporation shall preserve the requirement that Directors ultimately be elected by the Voting Members, while permitting the Board to exercise limited governance flexibility appropriate to the Corporation's launch stage, consistent with these Bylaws, the Certificate, and applicable law. Upon the expiration of the Launch Transitional Period, the governance provisions of these Bylaws shall be applied and administered on the basis that Voting Members have been admitted and that Directors are elected and removable by the Voting Members in accordance with these Bylaws, except as otherwise expressly provided herein.

Section 7.09 *Bylaws Amendments.* Except as provided in Section 6.09, and subject to the provisions below, the power to make, amend, or repeal these Bylaws, in whole or in part, shall be in the Voting Members. Notwithstanding the foregoing, prior to the admission of any Voting Members, the Board may consider and approve proposed amendments to these Bylaws to facilitate the Corporation's initial operations and to implement an interim governance structure, provided that any such amendments are adopted in good faith to comply with the requirements applicable to organizations described in Section 501(c)(6) of the Internal Revenue Code and are adopted subject to Voting Member approval as described below. Upon the admission of Voting Members, the Board shall promptly submit any Bylaws approved during the pre-admission period to the Voting Members for review, approval, and ratification at the next meeting of Members or at a special meeting called for such purpose, and thereafter the amendment power shall reside exclusively in the Voting Members (except as otherwise expressly provided in these Bylaws).

ADOPTED, SUBJECT TO VOTING MEMBER RATIFICATION, BY THE INCORPORATOR-APPOINTED BOARD BY WRITTEN CONSENT DATED: _____, 2026.

RATIFIED BY THE VOTING MEMBERS _____, 2026.